

# SENATE . . . . . No. 1538

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Dylan A. Fernandes***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act connecting veterans with access to breakthrough treatments.

PETITION OF:

NAME:

*Dylan A. Fernandes*

DISTRICT/ADDRESS:

*Plymouth and Barnstable*

# SENATE . . . . . No. 1538

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By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 1538) of Dylan A. Fernandes that the Executive Office of Health and Human Services be authorized to establish a program to promote, incentivize and support the development and deployment of eligible therapies among veterans and first responders. Public Health.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 4218 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act connecting veterans with access to breakthrough treatments.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1 Chapter 115 of the General Laws is hereby amended by adding the following section:-

2 Section 18. (a) For the purposes of this act, the following terms shall have the following  
3 meanings, unless the context clearly requires otherwise:

4 “Council”, the veteran breakthrough treatments and suicide prevention advisory council.

5 “Eligible entity”, a licensed hospital, research institution, agency, individual, medical  
6 institution or other legal entity that: (i) is qualified under the laws of the commonwealth to  
7 furnish medical care or services to patients; and (ii) meets the requirements of the secretary of  
8 health and human services, as set forth in section 2.

“Eligible therapy”, treatment for post-traumatic stress disorder, major depressive disorder or treatment-resistant depression with breakthrough therapy designation by the United States Food and Drug Administration.

“First responder”, a member of: (i) a police department; (ii) a fire department; (iii) the state police; or (iv) an emergency reserve unit of a volunteer fire department or fire protection district trained to administer first aid; provided, however, that a first responder shall not include police officers, firefighters or other persons engaged in police and fire work whose duties are primarily clerical or administrative.

“Program”, the veteran breakthrough treatments program established in section 2.

“Veteran”, a veteran, as defined in clause Forty-third of section 7 of chapter 4 of the General Laws, who is a resident of the commonwealth.

(b) (1) Notwithstanding any general or special law to the contrary, the executive office of health and human services, in consultation with the executive office of veterans’ services, shall establish the veteran breakthrough treatments program to promote, incentivize and support the development and deployment of eligible therapies among veterans and first responders. The secretary of health and human services may establish additional requirements and guidelines regarding eligible therapies.

(2) The program shall fund clinical research, treatment and provider training aimed at advancing or deploying breakthrough therapies for veterans and first responders.

(c) (1) There is hereby established the veteran breakthrough treatments and suicide prevention advisory council. The council shall advise the executive office of health and human

services and the executive office of veterans' services on the regulations and clinical infrastructure necessary to support clinical access to and training for the deployment of eligible therapies for veteran suicide prevention.

(2) The council shall advise the executive office on:

(i) the award of grants for eligible therapy treatment through the program;

(ii) the necessary education, training, licensing and credentialing of providers;

(iii) patient safety and harm reduction;

(iv) costs, insurance reimbursement and strategies to safely increase affordable access to care, including the use of group therapy;

(v) standards for treatment facilities;

(vi) relevant federal regulations and guidelines that commonwealth agencies may consider adopting;

(vii) assisting with the development of public awareness and education campaigns related to veteran suicides;

(viii) additional funding needed for subsidized patient access and provider and therapist training;

(ix) developing criteria and standards for the award of grants and fellowships;

(x) developing and providing oversight regarding mechanisms for the dissemination of treatment and training data; and

49           (xi) developing provisions to ensure justice, equity, diversity and inclusion are considered  
50 in the administration of grants and recommendations made to the executive office.

51           (3) The council shall consist of 7 members: (i) 3 members appointed by the governor; (ii)  
52 2 members appointed by the president of the senate; and (iii) 2 members appointed by the  
53 speaker of the house of representatives. Each appointer shall appoint at least one veteran. The  
54 council shall also include members with expertise in eligible therapy research, clinical mental  
55 health treatment, public health, access to mental and behavioral healthcare in underserved  
56 communities, veteran mental and behavioral healthcare and harm reduction.